



FEDERAL BUREAU OF INVESTIGATION

FINANCE AND FACILITIES DIVISION | PROCUREMENT SECTION

JUSTIFICATION AND APPROVAL (J&A) FOR OTHER THAN FULL AND OPEN COMPETITION



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION IN ACCORDANCE WITH 41 U.S.C. 3304 (A) (X)

Requisition Number: *SHOP-PR-26-000405*

Date: *12/01/2025*



1. Identification of the agency and contracting activity.

The U.S. Department of Justice, Federal Bureau of Investigation (FBI), [REDACTED], has prepared this justification for other than full and open competition for [REDACTED] Division.

2. The nature and/or description of the action being approved, i.e., sole source, limited competition, establishment of a new source, etc.

The Federal Bureau of Investigation (FBI) intends to negotiate a one-time, sole source, fixed price contract with Atlas Devices LLC., 21 Alpha Rd, Suite 202, Chelmsford, Massachusetts 01824-4170.

3. A description of the supplies or services required to meet the agency's needs.

Atlas Devices is the sole manufacturer of these devices and does not authorize any other vendor to perform this maintenance. These items are required for life safety. Failure to perform scheduled maintenance invalidates the manufacturer's warranty and endangers the lives of FBI personnel.

4. The statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304 (a)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.103-1 entitled, "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."



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5. Demonstrate the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

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6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.1 and, if not, which exception under 5.101 applies.

Notice of Intent to Sole-Source posted on Sam.gov.

7. A description of the market research conducted and the results.

The [REDACTED] Division is constantly searching the market for alternatives or options for this type of equipment. To date, no other options have been identified.

8. A listing of any sources that expressed a written interest in the acquisition.

No other sources other than Atlas Devices has been able to fulfill this need.

9. A statement of any actions the agency may take to remove or overcome any barriers to competition, if subsequent acquisitions are anticipated.

The Government will continue to research the market to obtain as many available sources as required in accordance with the FAR to ensure that there are other vendors out there that can satisfy this requirement. In addition, the customer will do due diligence in ensuring that barriers to competition are avoided to ensure we obtain the best value for the government.